

Ashok Pathak v. State of U.P. and Another

Allahabad High Court · Division Bench · 9 October 2025 · WRIT - C No. 32823 of 2025 · **Writ disposed; Clause 6.8 hearing directed subject to deposit.**

HEADNOTE

On a challenge to a recovery citation for electricity dues, where compliance with the assessment procedure was unclear and the consumer alleged denial of hearing, the Allahabad High Court disposed of the writ by directing the Assessing Officer to decide the objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 after personal hearing and confrontation with adverse material, subject to a part-deposit.

FACTUAL SUMMARY

Ashok Pathak challenged a Recovery Citation dated 24 May 2025 seeking to recover Rs. 3,81,370 from him towards electricity dues. He claimed that no opportunity of hearing was given before the demand was created. The High Court observed that it was not clear whether the assessment procedure had been fully complied with, and saw no useful purpose in keeping the petition pending or calling for a counter-affidavit at that stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

assessment-hearing

HOLDING

Where it is unclear whether the assessment procedure was fully complied with and the consumer alleges denial of hearing, one opportunity of hearing is to be given before the Assessing Officer under Clause 6.8 of the U.P. Electricity Supply Code, 2005, who shall decide the objection by a reasoned and speaking order after confronting the consumer with all adverse material and giving a personal hearing; subject to deposit of part of the disputed demand and filing of an application, failing which recovery revives. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT PROCEDURE HAD BEEN FULLY COMPLIED WITH AND WHETHER THE RECOVERY CITATION IS VALID ON MERITS

Compliance was found unclear; no counter-affidavit was called for. ¶ 3-4